

		conclusion reached but in the factors considered and the reasoning employed." (Pacific Gas & Electric Co. v. Zuckerman (1987) 189 Cal.App.3d 1113, 1135.) Further, the opinion of Ms. Hardin-Griffiths conflicts with Kevin's 2023 Accountings, which show the market value decreasing. While there is no competing expert declaration, the court must still strictly construe the moving party's papers and liberally construe the opposing party's papers to determine if they raise a triable issue of material fact. Second, even if the Arrowhead Property has increased in value as a result of the extensive repairs and improvements, there would remain a triable issue as to whether the benefit Petitioners may derive from the increased value of the property outweighs the burden of maintaining it. Kevin has not met his burden of showing that no triable issues of fact exist as to whether the court should order the sale of the Arrowhead Property. No Motion for Summary Adjudication An order granting summary judgment must dispose of the entire case thereby negating the need for trial. (Aguilar v. Atl. Richfield Co., (2001) 25 Cal. 4th 826, 858, internal citation omitted.) Kevin has not moved for summary adjudication in the alternative. The court cannot deem the instant motion a motion for summary adjudication because it fails to comply with the stringent requirements of California Rules of Court, Rule 3.1350(b). Since the issue of whether the trustee should be instructed to the sell the Arrowhead Property remains triable, the motion for summary judgment must be denied. The court need not reach the remaining requests for relief. Motion for summary judgment is DENIED. Counsel for Petitioners is ordered to give notice.
2	Obert – Trust (2020-01124614)	MOTION TO SET ASIDE Linda Dengler's motion to set aside the 6/7/24 Judgment is DENIED. <u>Evidentiary Matters</u>

Linda Dengler's request for judicial notice (ROA 297) is **GRANTED** as to Exhibit A.

Gregory Gardiner's request for judicial notice (ROA 312) is **GRANTED** as to Exhibits A-G over the objections of Linda Dengler (ROA 319), which objections are **OVERRULED**.

While the court takes judicial notice of certain exhibits as listed above, the court does not take judicial notice of the truths asserted within such exhibits. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCourt* (2001) 91 Cal.App.4th 875, 882; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375; Evid. Code, §§ 452, subd. (d)(l), (c), (h), 453; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Linda Dengler's objections to the Declaration of Julia C. McBride are **OVERRULED** as to objections 1, 2, 3, 6, 7, and 8 and **SUSTAINED** as to objections 4, 5, and 9.

Motion

Linda Dengler seeks to set aside the court's 6/7/24 Judgment on the ground that the court lacked jurisdiction over real property located in Oregon (the "Oregon Property") at the time the Judgment was made.

First, the 6/7/24 Judgment rendered rulings on several issues that had nothing to do with the Oregon Property. Even if the court lacked jurisdiction over the Oregon Property, such lack of jurisdiction would not be a proper ground to set aside the entire 6/7/24 Judgment.

Second, the court is not persuaded that it lacked jurisdiction over the Oregon Property.

Ms. Dengler claims that after the 6/7/24 Judgment was entered, Gregory Gardener admitted that the Oregon Property was never an asset of the Trust. The record does not reflect the truth of such statement. Rather, Mr. Dengler's attorney in Oregon sent a letter stating that the deed transferring the Oregon Property from the decedent Eleanor May Orbert to the Trust needed to be corrected. In short, title to the Oregon Property needed to be perfected in the Trust so that it could be transferred to Mr. Gardner as set forth in the 6/7/24 Judgment.

		A defect in the title of real property belonging to a trust does not mean that the property is not a trust asset. A declaration of trust is sufficient to create a trust interest in real property; a grant deed transferring title of the real property to the trustee is not necessary. (Prob. Code § 15200(a); <i>Estate of Heggstad</i> (1993) 16 Cal.App.4th 943, 949-950.) Furthermore, there is no question that the court had fundamental jurisdiction, that is, subject matter jurisdiction and personal jurisdiction. Thus, even if the court acted in excess of its jurisdiction when it made orders concerning the Oregon Property, the judgment pertaining to the Oregon Property would be voidable, not void. (<i>Pacific Mut. Life Ins. Co. of Calif. v. McConnell</i> (1955) 44 Cal.2d 715, 726; <i>Conservatorship of O'Connor</i> (1996) 48 Cal.App.4th 1076, 1088.) “Acts in excess of jurisdiction are subject to harmless error analysis, that is, they support a reversal of the judgment only upon a showing of prejudice. (See <i>People v. Williams</i> (2006) 40 Cal.4th 287, 301.) Furthermore, challenges to a judgment based on the defect may be barred under principles of estoppel, forfeiture, and waiver.” (<i>LAOSD Asbestos Cases</i> (2018) 28 Cal.App.5th 862, 870–71, citing <i>In re Griffin</i> (1967) 67 Cal.2d 343, 347; <i>People v. Mower</i> (2002) 28 Cal.4th 457, 474, fn. 6.) Ms. Dengler has not made a showing of prejudice resulting to her from the court’s alleged lack of jurisdiction over the Oregon Property. Indeed, the Oregon Property has since been distributed as agreed to by Ms. Dengler in the January Partial Distribution Agreement. Further, the Quitclaim Deed transferring the Oregon Property to the Trust, which Mr. Gardener’s Oregon attorney sought to correct (and has since corrected), was a trial exhibit, and Ms. Dengler made no objection to it. On the record presented, the court finds no grounds to set aside the 6/27/24 Judgment. The motion to set aside by Linda Dengler is denied. Counsel for Gregory Gardner is directed to give notice.
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4	Goodwin – Trust (2021-01221814)	MOTION FOR ATTORNEY FEES The motion by Conservator Cheryl Perkins for an order requiring Objector Sharon Lee Page and/or David Geare, Trustee, to pay attorney fees is DENIED.